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Case Number: 25STCV20957 Hearing Date: September 28, 2026 Dept: 510

No.

11 - Daniel Pena v. Los Angeles County Metropolitan Transportation Authority

Defendant

Los Angeles County Metropolitan Transportation Authority's Motion for Relief from Waiver of Discovery Objections

Defendant Los Angeles County

Metropolitan Transportation Authority moves for relief from its waiver of objections to Plaintiff Daniel Pena's form interrogatories, special interrogatories, requests for production, and requests for admission.

As

an initial matter, the Court notes that Defendant's motion for relief from waiver of objections to four different sets of discovery constitutes an improper omnibus motion. Defendant should have filed four separate motions.

A

responding party who does not serve a timely response waives all objections to discovery requests. (Code Civ. Proc., §§ 2030.290(a), 2031.300(a), 2033.280(a).) The court may grant relief from that waiver when the responding party (1) "has subsequently served a response that is in substantial compliance with" the statutes governing that method of discovery and (2) "[t]he party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect." (Code Civ. Proc., §§ 2030.290(a)(1) & (2), 2031.300(a)(1) & (2), 2033.280(a)(1) & (2).) Defendant meets both criteria.

Plaintiff

served his discovery requests on Defendant via email on March 11, 2026. (Aleagha Decl., ¶¶ 4-6.) However, Defense counsel reports that the email containing the discovery requests was routed to a quarantine folder and did not appear in counsel's inbox. (Ibid.) The firm's IT consultant confirmed that the transmission was routed into quarantine due to security concerns. (Id., ¶ 9.) When Defense counsel discovered the error more than one month later, she asked Plaintiff's counsel for a thirty-day extension, to which counsel agreed. (Id., ¶ 10.) However, Plaintiff's counsel did not agree to waive Defendant's objections. (Id., ¶¶ 12-13.) Defendant served verified responses on June 2, 2026. (Id., ¶ 10.) The Court has reviewed Defendant's responses and finds them to be in substantial compliance.

In addition, Defendant's failure to serve a timely response resulted from mistake, inadvertence, or excusable neglect. Defense counsel attests that the discovery requests were automatically routed to quarantine, and they were not discovered until April 15, 2026. (Aleagha Decl., ¶ 9.)

In opposition, Plaintiff largely disputes that Defendant did not receive the discovery requests in a timely fashion. Plaintiff argues that he sent a copy of the first amended complaint and the discovery requests in the same email; thus, it was impossible that one email was quarantined. (Galope Decl., ¶ 2.) In reply, Defendant concedes that the Exhibit Plaintiff submitted showing the routed email presents "what appears to be a single email with a combined subject line." (Reply, at p. 2.) However, Defendant's IT consultant confirmed that the transmission was indeed routed; even if the discovery requests were not routed, Defendant argues, it is possible that counsel accidentally did not review all attachments in the email. This is excusable neglect. Under the circumstances, the Court determines that any mistake made by Defense counsel was excusable. Denying this motion would prejudice Defendant in a way that does not serve the interests of justice.

Plaintiff

also argues that the responses are not in substantial compliance because they include waived objections. However, inclusion of objections in these discovery responses does not make Defendant's responses not Code-compliant under these circumstances. If this were true, the relief afforded from waiver of objections would be rendered meaningless.

The

Court will grant relief from Defendant's waiver of objections.

Disposition

Defendant

Los Angeles County Metropolitan Transportation Authority's motion for relief from its waiver of objections to Plaintiff Daniel Pena's form interrogatories, special interrogatories, requests for production, and requests for admission is granted.

Plaintiff

Daniel Pena's Motions for Orders Deeming Requests for Admission Admitted and Compelling Responses to Form Interrogatories, Special Interrogatories, and Requests for Production

Plaintiff

Daniel Pena moves for an order deeming that Defendant has admitted the truth of the matters specified in Plaintiff's requests for admission. Plaintiff also moves for orders compelling Defendant to respond to form interrogatories, special interrogatories, and requests for production.

Plaintiff's

discovery motions are moot. Plaintiff's motions rest on the premise that Defendant was not allowed to serve discovery responses that included waived objections. The Court now finds that relief from this waiver is appropriate (see above); thus, no order compelling responses is necessary.

However,

the Court will award Plaintiff mandatory sanctions against Defendant for its failure to timely serve responses to requests for admission. "It is mandatory that the court impose a monetary sanction . . . on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion." (Code Civ. Proc., § 2033.280(c).) Defendant failed to provide responses to Plaintiff's request for admission by the response deadline.

However,

Plaintiff's counsel did not reasonably incur \$1,875 for time spent drafting this simple discovery motion at a rate of \$750 per hour. The Court exercises its discretion to reduce Plaintiff's requested fees by 50%. The Court declines

to award Plaintiff sanctions requested in the other three discovery motions.

Disposition

Plaintiff

Daniel Pena's motions to compel responses to form interrogatories, special interrogatories, and requests for production are denied as moot. Daniel Pena's motion to deem matters admitted is granted in part as to sanctions only. Defendant Los Angeles County Metropolitan Transportation Authority and its counsel of record are ordered to pay Plaintiff Daniel Pena \$937.50 in sanctions within 21 days.